that in 1882, twelve years after its adoption, and ten years after the *Slaughter House Cases, supra,* an argument was made in this Court that a journal of the joint Congressional Committee which framed the Amendment, secret and undisclosed up to that date, indicated the Committee's desire to protect corporations by the use of the word "person." [11] Four years later, in 1886, this Court in the case of *Santa Clara County* v. *Southern Pacific Railroad,* 118 U. S. 394, decided for the first time that the word "person" in the Amendment did in some instances include corporations. A secret purpose on the part of the members of the Committee, even if such be the fact, however, would not be sufficient to justify any such construction. The history of the Amendment proves that the people were told that its purpose was to protect weak and helpless human beings and were not told that it was intended to remove corporations in any fashion from the control of state governments. The Fourteenth Amendment followed the freedom of a race from slavery. Justice Swayne said in the *Slaughter House Cases, supra,* that "by 'any person' was meant *all* persons within the jurisdiction of the State. No distinction is intimated on account of race or color." Corporations have neither race nor color. He knew the Amendment was intended to protect the life, liberty and property of *human* beings.

The language of the Amendment itself does not support the theory that it was passed for the benefit of corporations.

The first clause of § 1 of the Amendment reads: "All *persons* born or naturalized in the United States and sub-

[11] *San Mateo County* v. *Southern Pacific Railroad,* 116 U. S. 138. See Benj. B. Kendrick, Journal of the Joint Committee on Reconstruction (1914, New York); Howard J. Graham, The "Conspiracy Theory" of the Fourteenth Amendment, 47 Yale L. J. 371; Donald Barr Chidsey, The Gentleman from New York—A Life of Roscoe Conklin, Yale University Press (1935).